

Tentative Rulings for September 28, 2026 Department 1

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 638 4172**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2205239	IBARRA BARAJAS vs SAFAVIEH GROUP, LLC	MOTION FOR FINAL APPROVAL OF CLASS ACTION SETTLEMENT FINAL APPROVAL

Tentative Ruling: Appearances requested to discuss:

1. What will named plaintiff receive from the class and PAGA settlement?
2. Revise proposed judgment to comply with CMO ¶ H.8-17 (identify the settlement agreement by title, date it was filed, and document to which it was attached, require checks to be valid at least 90 days, envelope to say “YOUR CLASS ACTION SETTLEMENT CHECK IS ENCLOSED”, require administrator to send a reminder postcard to anyone who did not cash their check after 60 days from mailing, etc).
3. Need to select date for review of administrator’s report (order, ¶ 27). Confirm that order is a judgment (to be sure to get preclusive effect under *Arias*).

2.

CASE #	CASE NAME	HEARING NAME
CVRI2400375	LEON vs BIGHORN GOLF CLUB	MOTION FOR FINAL APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT, CLASS COUNSEL FEES AND EXPENSES PAYMENT, CLASS REPRESENTATIVE PAYMENT, AND SETTLEMENT ADMINISTRATOR’S FEES AND EXPENSES

Tentative Ruling: Appearances requested to discuss:

1. Correct amount of net class recovery--\$741,223.08 per the Ayala declaration, ¶ 16 or \$745,539.27 per the Blanchard declaration, ¶ 12. Might indicate some other discrepancy.
2. Why include non-defendant Bighorn entities (Bighorn Homeowners Association, Inc., Bighorn Properties, Inc., Bighorn Golf Club Charities, Bighorn Properties, LLC, Bighorn GP, Inc., and Bighorn Penthouse Condominium Owners Association) as released parties—were employees of these entities given notice, are Leon’s claims typical of their potential claims? Release refers to allegations against Bighorn Golf Club and Bighorn Homeowners Association, Inc. only.
3. Confirm defendant will pay employer’s share of payroll taxes in addition to gross settlement amount.
4. What will Leon recover from the class/PAGA settlement?
5. Revise order to state that settlement agreement is attached as exhibit 1 to the Blanchard Declaration filed September 2, 2026 (order refers to the declaration filed in support of motion for preliminary approval).
6. Revise order to identify the class member requesting exclusion by name, not employee ID, and include in the order, not another document (order, ¶ 2).

7. Add to order how notice of entry of judgment will be given.
8. Select date for review of administrator's report and add a paragraph concerning the filing and review of the report to the order.
9. Correct order ¶ 16 to \$12,000 for administrator's fee.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2402543	RICHARDSON vs ATRIA MANAGEMENT COMPANY, LLC	MOTION FOR FINAL APPROVAL OF CLASS ACTION SETTLEMENT

Tentative Ruling: Appearances requested to discuss:

1. Counsel's declaration does not provide calculations for the PAGA penalties, including the nature of the violations; number of violations; total amount of penalties if the allegations are proven; likely amount of penalties at trial; likelihood that the violations are knowing and intentional; the imposition of penalties would be unjust, arbitrary, oppressive or confiscatory; how the amount of the agreed-upon penalties was calculated; and any other factors to determine that the penalties are fair.
2. Were named plaintiffs a plaintiff in any other PAGA action?
3. Was a bidding process used to select Simpluris and was it the low bidder?
4. No declaration from Simpluris.
5. Are enhancements of \$15,000 to four plaintiffs warranted?
6. Order references PAGA claims that "reasonably could have been alleged" in the complaint and the PAGA notice—are there any potential violations that were not alleged but which the parties want to include?
7. Need to select date for filing and review of report from Simpluris about distribution of funds (order, ¶ 15).
8. Should we add the term judgment to the title of the order and should we reference *Arias* in the text of the order?

4.

CASE #	CASE NAME	HEARING NAME
CVRI2405457	AYALA vs EISENHOWER IMAGING CENTER, LLC	MOTION FOR FINAL APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT AND MOTION FOR AWARD OF ATTORNEYS' FEES AND COSTS; MEMORANDUM OF POINTS AND AUTHORITIES

Tentative Ruling:

Revise judgment to indicate the title, filing date, and name of document to which the settlement agreement is attached, does not require the envelopes containing the checks to state YOUR CLASS ACTION SETTLEMENT CHECK IS ENCLOSED, does not

require the administrator to send a reminder postcard if check is not cashed within 60 days of mailing, does not require that the current employees can receive their distributions delivered to the employees at their place of employment, is if the distribution is returned and the administrator is unable to locate a valid mailing address and does not describe notice of entry of judgment. CMO ¶ H.9-15.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2405959	THOMAS vs RAINTREE SYSTEMS, INC.	MOTION FOR FINAL APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT; MEMORANDUM OF POINTS AND AUTHORITIES

Tentative Ruling: Appearances requested to discuss:

1. Limit the period checks will be negotiable to 180 days (not at least 180 days). Add that administrator will send a reminder postcard to anyone who does not cash their check within 60 days of mailing. Order ¶ 22.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2601382	SAWICKY vs CITY OF LAKE ELSINORE	DEMURRER ON COMPLAINT FOR OTHER REAL PROPERTY

Tentative Ruling: No tentative ruling; no opposition is reflected on the register of actions.

7.

CASE #	CASE NAME	HEARING NAME
CVRI2601382	SAWICKY vs CITY OF LAKE ELSINORE	MOTION TO STRIKE COMPLAINT ON COMPLAINT FOR OTHER REAL PROPERTY

Tentative Ruling: No tentative ruling; no opposition is reflected on the register of actions.

8.

CASE #	CASE NAME	HEARING NAME
CVRI2602521	WHITE vs UNITED MEDICAL DOCTORS	MOTION FOR KENNEDY M. BRIAN TO APPEAR AS COUNSEL PRO HAC VICE

Tentative Ruling: Grant; court will sign proposed order after hearing.

9.

CASE #	CASE NAME	HEARING NAME
CVRI2600904	PACHECO vs FLEX LOGISTICS, LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Appearances requested for evidentiary hearing.

10.

CASE #	CASE NAME	HEARING NAME
CVRI2600904	PACHECO vs FLEX LOGISTICS, LLC	JOINDER TO MOTION TO COMPEL ARBITRATION

Tentative Ruling: Appearances requested for evidentiary hearing.